



CHAPTER 59

An Act to provide for the establishment of the State of Singapore and for the peace, order and good government thereof; and for purposes connected with the matters aforesaid. [1st August, 1958]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Her Majesty may by Order in Council (hereinafter referred to as “the Constitution Order”), which shall be laid before Parliament after being made, make such provision as may appear to Her Majesty to be necessary or expedient for the peace, order and good government, under the title of the State of Singapore, of the territories included immediately before the passing of this Act in the Colony of Singapore; and, as from the day on which all the provisions of that Order have come into force, those territories shall be known by that title and subsection (3) of section one of the British Nationality Act, 1948 (which specifies the countries whose citizens are by virtue of that citizenship British subjects or Commonwealth citizens) as amended by the Federation of Malaya Independence Act, 1957, shall have effect as if for the words “and the Federation of Malaya” there were substituted the words “the Federation of Malaya and the State of Singapore”.

(2) The Constitution Order may revoke or amend, or provide for the revocation or amendment of, any Order in Council or other instrument affecting the territories aforesaid made before the day aforesaid under the British Settlements Acts, 1887 and 1945, or the Straits Settlements (Repeal) Act, 1946; and as from that day no further Order in Council or other instrument

affecting those territories shall be made under those Acts except for the purpose of revoking or amending any such Order in Council or other instrument for the time being in force.

(3) The Constitution Order may authorise the revocation or amendment of any of its provisions in any manner specified by the Order in relation to those provisions respectively, but save as may be so authorised shall not be capable of being revoked or amended except by Act of Parliament; and where that Order authorises the revocation or amendment of any of its provisions by Order in Council, any Order in Council made in pursuance of that authority shall be made by statutory instrument and be laid before Parliament after being made.

(4) Her Majesty may by Order in Council, which shall be subject to annulment in pursuance of a resolution of either House of Parliament, make such incidental, consequential and transitional provisions, including, in particular, adaptations and modifications of, or of any instrument made under, any Act of Parliament, as may appear to Her Majesty to be necessary or expedient by reason of anything contained in this section or in any instrument made thereunder and, in particular, by reason of any provision of the Constitution Order providing for the appointment in and for the State of Singapore, in addition to a representative of Her Majesty, of a representative of Her Majesty's Government in the United Kingdom; and any such adaptation or modification may be made so as to have effect from any date not earlier than that of the making of the Constitution Order notwithstanding that the Order in Council under this subsection was made after that date.

Short title.

2. This Act may be cited as the State of Singapore Act, 1958.

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